

# Waste Management Act, 2011

*Document type: act*

*Source: Nepal Law Commission / Ministry of Law, Justice and Parliamentary Affairs*

*Chunks merged: 12*

## Chapter 1

### Preliminary

1. Short Title and Commencement: (1) This Act may be called the "Solid Waste Management Act, 2068 (2011)."

(2) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Industrial Solid Waste" means hazardous and polluted solid waste emitted from an industrial establishment.

(b) "Industrial Establishment" means any company, industry, firm, or any other entity established pursuant to prevailing law for the purpose of operating any industry, business, or service.

(c) "Container" means a receptacle, box, bucket, or any other similar item placed at a designated location for the purpose of collecting solid waste, and said term shall also include a receptacle placed for producing compost fertilizer.

(d)

(e) "Transportation" means the act of carrying collected solid waste from the place of generation to a collection center and from a collection center to a transfer station, or from a transfer station to a solid waste management site or amended by Some Nepal Acts Amendment Act, 2072.a place designated by the Local Level.

(f) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act.

(g) "Minimization" means the act of reducing the quantity, size, or effect of solid waste by using any technology or measure.

(h) "Discharge" means the act of piling up or discarding solid waste from the place of generation to a place designated by amended by Some Nepal Acts Amendment Act, 2072.the Local Level.

(i) "Council" means the Solid Waste Management Council formed pursuant to Section 23.

(j) "Pollution" means activity that directly or indirectly affects the environment through the combination of solid, liquid, or gaseous substances emitted from solid waste, causing significant degradation of the environment, causing damage, or causing harm or loss to the beneficial or useful purposes of the environment.

(k) "Affected Area" means the area mentioned in the Initial Environmental Examination and Environmental Impact Assessment report of a solid waste management site.

(l) "Processing" means the process of managing solid waste by changing its form or property to prepare other

useful items, or producing fertilizer, gas, energy, or other items.

(m) "Processing Site" means the place where operations are carried out to process solid waste to produce fertilizer, gas, energy, or other items.

(n) "Recycling" means the act of transforming collected solid waste into raw materials, developing them into useful items, and bringing them back into use through the application of technology.

(o) "Solid Waste" means domestic solid waste, industrial solid waste, chemical solid waste, health institution waste, or hazardous solid waste, and said term shall also denote substances including solid, liquid, gaseous, sludge, smoke, dust, materials used for electrical and information technology, items that are not immediately usable, discarded, decomposing, or discharged in a manner causing environmental degradation, or other similar types of articles, or posters, pamphlets affixed to public places without authorization, and other items designated as solid waste by the Government of Nepal by publishing a notice in the Nepal Gazette from time to time.

(p) "Solid Waste Management Site (Sanitary Landfill Site)" means a site designated by amended by Some Nepal Acts Amendment Act, 2072.the Local Level for the disposal or processing of solid waste.

(q) "Solid Waste Collection" means the act of lifting solid waste from the place of generation, collecting it door-to-door, sweeping and piling up solid waste present in public places, uprooting weeds, and collecting posters and pamphlets affixed to public places without authorization.

(r) "Solid Waste Collection and Transportation Means" means the means, equipment, or tools used for the purpose of collecting and transporting solid waste.

(s) "Post Closure Management" means the activities carried out to maintain the environmental balance of an area after the disposal of solid waste at a solid waste management site has ceased.

(t) amended by Some Nepal Acts Amendment Act, 2075."Ministry" means the Ministry of Federal Affairs and General Administration of the Government of Nepal.

(u) "Chemical Solid Waste" means all chemical substances from any source or process that are unusable in their current state and have an adverse effect on human health, living beings, animals, and the environment, or substances including solids, liquids, dust, sludge, gases, or items designated as chemical solid waste by the Government of Nepal from time to time by publishing a notice in the Nepal Gazette.

(v) "Disposal" means the final discharge and management of solid waste.

(w) "Collection Center" means a place designated by amended by Some Nepal Acts Amendment Act, 2072.the Local Level for discarding, keeping, or piling solid waste collected from households until a specified time, and said term shall also denote a solid waste collector or solid waste collection vehicle designated by amended by Some Nepal Acts Amendment Act, 2072.the Local Level that comes to collect solid waste from households.

(x)

(y) "Community Organization" means a community-based participatory consumer group, cooperative organization, or non-governmental organization established pursuant to prevailing law for the benefit of the community with the objective of not making a profit.

(z) "Transfer Station" means a place designated by the Local Level for collecting solid waste before taking it

to a solid waste management site (sanitary landfill site) for disposal of the collected solid waste.

(aa) "Local Level" means the concerned Metropolitan City, Sub-Metropolitan City, Municipality, or Rural Municipality.

(bb) "Health Institution Waste" means hazardous solid waste produced and discharged from hospitals, clinics, pharmacies, medicine shops, blood banks, pathological laboratories, animal health institutions, or health research centers.

(cc) "Hazardous Solid Waste" means objects, substances, and radiation discharged in various forms that cause degradation of the natural environment and cause harm or loss to the health of humans and other living beings.

## Chapter 2

### Provisions Relating to Solid Waste Production, Collection, Minimization, and Discharge

3. Local Level Responsible for Solid Waste Management: (1) The Local Level shall be responsible for the construction and operation of necessary infrastructure and structures for the collection, final disposal, and processing of solid waste, including transfer stations, landfill sites, processing plants, compost plants, biogas plants, etc., for the management of solid waste.

(2) The Local Level shall be responsible for the management or use in any manner of solid waste dumped or kept at a solid waste collection center, transfer station, or processing site, or solid waste accumulated in the course of sanitation.

(3) For the purposes of this section, any solid waste dumped or kept at a solid waste collection center, transfer station, or processing site, or any substance accumulated in the course of sanitation shall be deemed solid waste. 4. Duty to Manage Solid Waste: (1) The duty to manage or cause to be managed solid waste pursuant to this Act shall be of amended by Some Nepal Acts Amendment Act, 2072.the Local Level.

(2) Notwithstanding anything contained in subsection (1), the duty to process and manage hazardous solid waste, health institution waste, chemical solid waste, or industrial solid waste shall be of the person or entity producing such solid waste, subject to determined standards.

(3) If any industry or health institution requests amended by Some Nepal Acts Amendment Act, 2072.the Local Level to manage the solid waste remaining after processing hazardous solid waste, health institution waste, chemical solid waste, and industrial solid waste, or requests to use a solid waste management site constructed by amended by Some Nepal Acts Amendment Act, 2072.the Local Level, the Local Level may, upon levying service fees determined by amended by Some Nepal Acts Amendment Act, 2072.the Local Level, manage the solid waste or allow the use of the solid waste management site. 5. Reducing Solid Waste Production: (1) Any person, entity, or body shall, as far as possible, minimize the solid waste generated while doing any work or business.

(2) It shall be the duty of every person, entity, or body to reduce the quantity of solid waste by arranging for the disposal or reuse of solid waste that can be disposed of within their own area, and only discharging the remaining solid waste. Explanation: For the purposes of this section, "Own Area" means the private house compound, industrial zone premises, hospital or health institution premises, industrial establishment premises, and the premises of the person, entity, or body generating solid waste. 6.

Segregation of Solid Waste: (1) amended by Some Nepal Acts Amendment Act, 2072.The Local Level shall

prescribe that solid waste be sorted at the source by dividing it into at least organic and inorganic types. (2) The duty to sort solid waste at the source as prescribed by amended by Some Nepal Acts Amendment Act, 2072.the Local Level pursuant to subsection (1) and to deliver it to the collection center shall be of the person, entity, or body generating such solid waste, and for this purpose, amended by Some Nepal Acts Amendment Act, 2072.the Local Level may provide necessary technology, materials, equipment, containers, etc. 7. Discharge of Solid Waste: (1) The time, place, and method of discharging solid waste shall be as determined by amended by Some Nepal Acts Amendment Act, 2072.the Local Level. (2) A person, entity, or body producing hazardous solid waste or chemical solid waste shall manage such waste as prescribed. (3) Hazardous solid waste or chemical solid waste shall not be discharged at a collection center or transfer station. 8. Designating a Solid Waste Collection Center: (1) amended by Some Nepal Acts Amendment Act, 2072.The Local Level may designate a collection center in each neighborhood or settlement for the systematic collection of solid waste and arrange for necessary containers. (2) While designating a collection center pursuant to subsection (1), an environmentally suitable place shall be designated that is, as far as possible, convenient for all in the neighborhood or settlement. (3) The time and method for discharging and collecting solid waste at the collection center designated pursuant to subsection (1) shall be as determined by amended by Some Nepal Acts Amendment Act, 2072.the Local Level. 9. Transportation of Solid Waste: (1) The duty to transport solid waste accumulated at a collection center to a transfer station or solid waste management site shall be of amended by Some Nepal Acts Amendment Act, 2072.the Local Level, or the entity or body arranged by such body. (2) While transporting solid waste, the prescribed means of transportation must be used. When prescribing the means of transportation, due consideration shall be given to weight, capacity, method or procedure, road capacity, and the potential impact on the environment during the transportation of solid waste. (3) While transporting solid waste, the solid waste that has been sorted at the source and discharged and collected pursuant to Section 6 shall be transported separately by amended by Some Nepal Acts Amendment Act, 2072.the Local Level. 10.

12. Solid Waste Management Site: (1) amended by Some Nepal Acts Amendment Act, 2072.The Local Level may, subject to the prevailing law relating to the environment, designate a solid waste management site (sanitary landfill site) for the management and permanent disposal of solid waste collected within its area.

(2) If the Local Level does not have land for designating a solid waste management site pursuant to subsection (1), or if land is available but is not suitable for designating a solid waste management site, the Local Level may designate a management site by renting or purchasing suitable land.

(3) While designating a solid waste management site pursuant to this section, a solid waste management site may be developed and operated on private land of the private sector, subject to Section 16.

(4) If there is a shortage of land for the Local Level to designate a solid waste management site pursuant to subsection (1) or (2), it may request the Ministry to select and provide a suitable site.

(5) Upon receiving a request to provide a solid waste management site pursuant to subsection (4), the Ministry shall obtain such land pursuant to prevailing law and make it available to amended by Some Nepal Acts Amendment Act, 2072.the Local Level.

(6) If the same solid waste management site is suitable for two or more amended by Some Nepal Acts Amendment Act, 2072.Local Levels, the Ministry may, after coordination among such Local Levels, designate such site as a solid waste management site subject to the written consent and conditions of the concerned amended by Some Nepal Acts Amendment Act, 2072.Local Levels.

(7) amended by Some Nepal Acts Amendment Act, 2072. The Local Level shall carry out activities related to the operation and post-closure management of the solid waste management site in accordance with prescribed environmental standards.

(8) While carrying out post-closure management activities pursuant to subsection (7), it shall be done in accordance with the recommendations provided in the Initial Environmental Examination and Environmental Impact Assessment report of the solid waste management site.

(9) amended by Some Nepal Acts Amendment Act, 2072. The Local Level may, if necessary, declare the solid waste management site area an environmentally sensitive area.

(10) In the area designated pursuant to subsection (9), the Local Level may prohibit unauthorized entry of birds, animals, wildlife, and humans, prohibit the extraction of stones, gravel, and sand, and issue and implement other necessary directives and guidelines for environmental protection and proper management of such area. Chapter 4

#### Involvement of Private and Community Sectors in Solid Waste Management

#### 13.

Provision Relating to Permission: (1) No one may perform or cause to be performed any work related to solid waste management without obtaining permission from amended by Some Nepal Acts Amendment Act, 2072. the Local Level pursuant to this Act. (2) A domestic or foreign company, entity, or body wishing to manage solid waste shall submit an application to the concerned amended by Some Nepal Acts Amendment Act, 2072. Local Level for permission, stating the following details:- (a) A plan for solid waste management, (b) Details of necessary manpower and technology for solid waste management, (c) Other details as prescribed. (3) Upon receiving an application pursuant to subsection (2), the concerned amended by Some Nepal Acts Amendment Act, 2072. Local Level may, after making necessary inquiries, grant a permit. (4) If the technology required for solid waste management, recycling, processing, and disposal is not available domestically, amended by Some Nepal Acts Amendment Act, 2072. the Local Level may, upon obtaining approval from the Government of Nepal, grant a permit pursuant to subsection (3) to a foreign company, entity, or body capable of providing such technology, on the condition that such technology is transferred within the period specified in the agreement. (5) Other provisions relating to permits shall be as prescribed. 14. Solid Waste Management Work May Be Done by Private Sector: (1) amended by Some Nepal Acts Amendment Act, 2072. The Local Level may, as required, cause the management of solid waste within its area to be done by companies from the private sector that have obtained permission pursuant to Section 13, or from the community sector, by inviting competition pursuant to Section 15 or by adopting any procedure pursuant to the law relating to private investment in the construction and operation of infrastructure structures. (2) While managing solid waste pursuant to subsection (1), all or any of the following tasks may be done by a private sector company, and any of the following tasks may be done by a community or non-governmental association or organization:- (a) Raising public awareness for solid waste minimization, (b) Solid waste collection, (c) Solid waste transportation, (d) Use, reuse, recycling, or processing of solid waste, (e) Solid waste disposal, and (f) Post-closure management. 15.

Assigning Solid Waste Management Responsibility Through Competition: (1) amended by Some Nepal Acts Amendment Act, 2072. While causing solid waste management to be done by the private sector or community organizations pursuant to Section 14, the Local Level shall select a manager by calling for bids and inviting competition, and assign the responsibility of management. (2) The selection of a solid waste manager pursuant to subsection (1) shall be done on the following bases:- (a) The amount committed to be paid to

amended by Some Nepal Acts Amendment Act, 2072.the Local Level, (b) Capacity for energy generation or organic fertilizer production from solid waste, capital, technology, and manpower capacity, (c) Financial and technical capacity, (d) Sustainability of the technology proposed to be adopted for solid waste management and minimization of environmental impact, (e) If management is to be contracted, the proposed management fee, (f) Royalty agreed to be paid to amended by Some Nepal Acts Amendment Act, 2072.the Local Level regarding the use, processing, or reuse of solid waste. (3) Other provisions relating to bidding shall be as per prevailing law. (4) A company, entity, or body that has been assigned the responsibility of solid waste management pursuant to subsection (1) may collect fees pursuant to Section 18, subject to the agreement made with amended by Some Nepal Acts Amendment Act, 2072.the Local Level. (5) Other matters relating to the involvement of the non-governmental sector in solid waste management shall be as prescribed. 16. Approval May Be Given to Construct and Operate Solid Waste Management Sites: (1) If approval is sought for the construction and operation of a solid waste management site, processing site, or other mechanism for solid waste management by the private sector, amended by Some Nepal Acts Amendment Act, 2072.the Local Level may give approval for the construction and operation of such mechanism, subject to the environment and other prevailing laws. (2) amended by Some Nepal Acts Amendment Act, 2072.The Local Level shall monitor whether prescribed environmental standards are complied with or not during the construction and operation of a solid waste management mechanism by the private sector pursuant to subsection (1). (3) If, upon monitoring pursuant to subsection (2), it is found that the approved standards have not been complied with, a timeframe may be specified to make the necessary arrangements for compliance with such standards, and if the necessary arrangements for compliance with the standards are not made even within that timeframe, the approval of such person or company may be cancelled by amended by Some Nepal Acts Amendment Act, 2072.the Local Level as prescribed. 17.

Solid Waste Management May Be Done Through Public-Private Partnership: (1) amended by Some Nepal Acts Amendment Act, 2072.The Local Level may, subject to prevailing law, carry out solid waste management work in partnership with the private sector, community and non-governmental associations, and organizations. (2) Notwithstanding anything contained in subsection (1), only activities such as raising public awareness for solid waste minimization, solid waste collection, transportation, post-closure management of solid waste management sites, gardening, and beautification may be done or caused to be done in partnership with community and non-governmental associations and organizations. Chapter 5 Provisions Relating to Solid Waste Management Service Fees 18. May Levy Service Fee: (1) amended by Some Nepal Acts Amendment Act, 2072.The Local Level may levy and collect service fees from the concerned person, entity, or body for solid waste management carried out. (2) The fee pursuant to subsection (1) shall be determined by amended by Some Nepal Acts Amendment Act, 2072.the Local Level based on the quantity, weight, and nature of the solid waste and other matters as prescribed. (3) The fee pursuant to subsection (1) may be collected by the concerned Local Level itself or through an entity or body designated by it. (4) Notwithstanding anything contained elsewhere in this section, a person, entity, or body that has been assigned the responsibility of solid waste management pursuant to Section 15 may collect service fees from the concerned person, entity, or body for solid waste management carried out, based on the agreement with amended by Some Nepal Acts Amendment Act, 2072.the Local Level. Provided that, a discount shall be given on the service fee as prescribed to the indigent class as prescribed. (5) The income derived from fees pursuant to this section and the income received from involving the private sector in solid waste management must be kept by amended by Some Nepal Acts Amendment Act, 2072.the Local Level under a separate heading, and that amount shall be spent, subject to prescribed standards, on solid waste management, environmental protection, and the development of the area affected by the solid waste management site. 19.

May Suspend or Terminate Service: (1) amended by Some Nepal Acts Amendment Act, 2072. The Local Level may suspend or terminate the solid waste management related service of a service user who does not pay the service fee pursuant to Section 18. (2) Notwithstanding anything contained in subsection (1), a person, entity, or body that has been assigned the responsibility of solid waste management pursuant to Section 15 may suspend or terminate the solid waste management related service of a service user who does not pay the service fee pursuant to subsection (4) of Section 18, and if the service is thus suspended or terminated, information thereof shall be given to amended by Some Nepal Acts Amendment Act, 2072. the Local Level. (3) In the event of suspension or termination of service pursuant to subsection (1) or (2), the concerned householder shall themselves manage the solid waste produced from their house. (4) If the service user pays the service fee required to be paid pursuant to Section 18, service shall be provided to them again.

Chapter 6 Provisions Relating to Pollution Control and Monitoring of Solid Waste Management Activities

20. Pollution Control: (1) The duty to manage solid waste collected within its area in a pollution-free manner, minimizing adverse environmental impacts that may occur in that area, shall be of amended by Some Nepal Acts Amendment Act, 2072. the Local Level. (2) omitted by Some Nepal Acts Amendment Act, 2075. (3) amended by Some Nepal Acts Amendment Act, 2072. The Local Level must comply with the standards determined pursuant to this Act while discharging and managing collected solid waste.

21. Monitoring of Solid Waste Management: (1) amended by Some Nepal Acts Amendment Act, 2072. The Local Level shall conduct or cause to be conducted regular monitoring of solid waste management and discharge activities. (2) For the purpose of monitoring or causing monitoring pursuant to subsection (1), amended by Some Nepal Acts Amendment Act, 2072. the Local Level may prepare and implement a necessary action plan. (3) A person deployed for monitoring pursuant to subsection (1) must submit a report thereof to the concerned amended by Some Nepal Acts Amendment Act, 2072. Local Level after the monitoring is completed. (4) amended by Some Nepal Acts Amendment Act, 2072. The Local Level shall make necessary arrangements regarding the correction and implementation of issues pointed out in the report received pursuant to subsection (3). (5) omitted by Some Nepal Acts Amendment Act, 2075.

22.

Provisions Relating to Economic and Social Development and Environmental Protection of the Area Affected by the Solid Waste Management Site: (1) amended by Some Nepal Acts Amendment Act, 2072. The Local Level shall prepare a master plan for the economic, social, and physical development and environmental protection of the area affected by the solid waste management site, and prepare and implement various programs for the implementation of that plan. (2) For the purpose of subsection (1), amended by Some Nepal Acts Amendment Act, 2072. the Local Level may primarily operate programs in the following areas:- (a) Road construction, electricity supply, drinking water and drainage, sanitation, and environmental protection, (b) Establishment and operation of schools and health institutions, (c) Programs necessary for the upliftment and development of economically disadvantaged and socially backward classes of the area affected by the solid waste management site. (3) amended by Some Nepal Acts Amendment Act, 2072. The Local Level shall formulate plans pursuant to subsection (1) or select programs pursuant to subsection (2) in consultation with the concerned community. (4) While implementing programs formulated for the affected area pursuant to this section, local community participation must be ensured. (5) While operating a solid waste management site or implementing any program for it, it must be done in a manner that conforms to the standards set by the prevailing law on environmental protection. (6) A committee as prescribed may be formed at the local level to provide suggestions on the severely affected area due to the solid waste management site and on the economic and social development and environmental protection of the affected area.

Explanation: For the purposes of this section, "Severely Affected Area" means an area designated by the Government of Nepal by publishing a notice in the Nepal Gazette.

Chapter 7 Provisions Relating to Solid Waste Management Council

Formation of Council: (1) A Solid Waste Management Council is hereby formed for the determination of policies to be adopted regarding solid waste management. (2) The Council pursuant to subsection (1) shall consist of the following members:- (a) Minister, Ministry of Local Development - Chairperson (b) Secretary, Ministry of Physical Planning and Construction - Member (c) Secretary, Ministry of Industry - Member (d) Secretary, Ministry of Environment - Member (e) Secretary, Ministry of Health and Population - Member (f) Secretary, Ministry of Local Development - Member (g) Secretary, Secretariat of the National Planning Commission - Member (h) Chief, Kathmandu Metropolitan City - Member (i) Five persons nominated by the Council from among the Mayors of Municipalities to represent the five development regions - Member (j) amended by Some Nepal Acts Amendment Act, 2072. Five persons, including at least three women, nominated by the Government of Nepal from among the office bearers of associations or federations related to the Local Level - Member (k) Two persons, including at least one woman, nominated by the Council from the area designated by the Government of Nepal as a severely affected solid waste area - Member (l) Representative, Federation of Nepalese Chambers of Commerce and Industry - Member (m) Two persons, including at least one woman, nominated by the Council from among experts and scientists related to solid waste management - Member (n) One representative of a community organization working in the field of solid waste management, nominated by the Council - Member amended by Some Nepal Acts Amendment Act, 2075. (o) Joint Secretary designated by the Ministry - Member-Secretary (3) The term of office of a member nominated to the Council pursuant to clause (m) of subsection (2) shall be four years, and they may be renominated. (4) The term of office of a member nominated pursuant to clauses (i), (k), and (n) of subsection (2) shall be one year, and they shall not be eligible for renomination. omitted by Some Nepal Acts Amendment Act, 2075. (5) 24.

Functions, Duties, and Powers of the Council: The functions, duties, and powers of the Council shall be as follows:-

(a) To formulate national policy on solid waste management and submit it to the Government of Nepal for approval,  
 (b) To make policy-level arrangements for coordination among bodies involved in solid waste management,  
 (c) To approve criteria for determining service fees to maintain uniformity when amended by Some Nepal Acts Amendment Act, 2072. the Local Level determines fees for solid waste management,  
 (d) To determine the percentage of the amount to be invested by amended by Some Nepal Acts Amendment Act, 2072. the Local Level when such investment is necessary for integrated solid waste management,  
 (e) To perform other functions as prescribed. 25. Meetings and Decisions of the Council: (1) A meeting of the Council shall be held at least once a year at the date, time, and place specified by the Chairperson of the Council.

(2) The meeting of the Council shall be chaired by the Chairperson of the Council, and in their absence, a member chosen by the members present from among themselves shall chair the meeting.

(3) If more than fifty percent of the total number of members of the Council are present, it shall be deemed to constitute a quorum for the meeting of the Council.

(4) Decisions of the Council meeting shall normally be based on consensus. If consensus cannot be reached, decisions shall be based on a majority vote, and in case of a tie, the person chairing the meeting shall cast the deciding vote.



(5) If the Council deems necessary, it may invite any domestic or foreign expert or concerned official related to solid waste management to participate in the meeting of the Council as an observer.

(6) Decisions of the Council shall be certified by the Member-Secretary.

(7) Other procedures relating to meetings of the Council shall be as determined by the Council itself. Chapter 8

omitted by Some Nepal Acts Amendment Act, 2075

## Chapter 9

### Offenses and Penalties

38.

Offense: If any person commits any of the following acts, they shall be deemed to have committed an offense under this Act:- (a) Discharging solid waste at a place other than the time and place specified by amended by Some Nepal Acts Amendment Act, 2072.the Local Level, (b) Using solid waste kept in a container or collection center without authorization, (c) Breaking, damaging, removing from its place the container kept at a solid waste collection center, or causing any damage to the collection center, (d) Performing solid waste management work without obtaining permission pursuant to this Act, (e) Violating the conditions mentioned in the permit granted for solid waste management pursuant to this Act, (f) Discarding, keeping, or piling any kind of harmful substance at a solid waste collection center, container, or waste piling site, (g) Keeping, discarding, or piling solid waste from houses, compounds, or premises on the road or other public places, (h) Allowing leachate (polluted water) or sewage from waste to leak and pollute another person's house or land, (i) Parking any kind of vehicle on the road or other public places during the time specified by amended by Some Nepal Acts Amendment Act, 2072.the Local Level for sanitation and solid waste collection, or refusing to remove a parked vehicle during cleaning time, (j) Keeping, discarding, piling, or discharging any kind of hazardous solid waste on the road or other public places in a manner that adversely affects public health, except at a place designated by amended by Some Nepal Acts Amendment Act, 2072.the Local Level, (k) Indiscriminately discarding, keeping, or discharging or causing to be discharged chemical solid waste, industrial solid waste, health institution waste, or hazardous solid waste, (l) An industrial establishment or health institution indiscriminately discarding, keeping, or discharging or causing to be discharged hazardous solid waste emitted from the industry or health institution, (m) Creating obstruction or hindrance in solid waste collection, transportation, and solid waste management, (n) Obstructing, closing, besieging solid waste collection, transportation, and final discharge sites, or striking work related to solid waste management, (o) Producing and selling or distributing any item that the Government of Nepal has prohibited by publishing a notice in the Nepal Gazette stating that it is an item that generates excessive solid waste, (p) Importing chemical pesticides contrary to Section 44, or failing to fulfill the responsibility of destroying expired medicines (period lapsed), (q) Discharging solid waste mixed together without segregating it at the source, contrary to Section 6, (r) Keeping, discarding, or piling dead or killed birds/animals and their dung, feathers, bones, fish scales, etc., in public places, roads, alleys, or squares.